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File No.: EXP202208258

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On 30/06/2022, a document was submitted to this Agency by A.A.A. (hereinafter, the complainant), through which a complaint is filed against GAVANOVA DE INMOBILES, S.L. with NIF B64935497 (hereinafter, GAVANOVA), for a possible breach of the provisions of the personal data protection regulations.

The reasons for the complaint are as follows:

"We entered into a contract and a lease termination with the real estate agency and we have seen that the data protection law shown in the signed documents does not correspond with the current law. Furthermore, when we accessed their website to check their policy, a blank page appeared with no text. We feel our data is unprotected and when we complain to the real estate agency, they ignore us. Additionally, there has been fraudulent treatment with them (full name, ID, address) as they provided it to the cleaning company without our consent by forcing us to pay, through the deposit, for a cleaning contract of the property that we have neither seen nor accepted."

Attached is the following documentation:

- Photograph of the reservation document of the property signed between the parties, dated 29/07/2020; as well as the termination of the lease contract, dated 31/01/2022.

SECOND: In view of the reported facts, on 27/07/2022 this Agency accessed the website ***URL.1 and verified that the "Privacy Policy" section directed to a blank page.

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 27/07/2022, the complaint was forwarded to GAVANOVA, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not acknowledged by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 07/08/2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail which was duly notified on 31/08/2022. In this notification, they were reminded of their obligation to interact electronically with the Administration, and were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

This Agency has not received a response to it.

THIRD: On 30/09/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On 18/11/2022, this Agency accessed the website ***URL.1, confirming the incorporation of a Privacy Policy whose last update dates from 29/09/2022.

FIFTH: On 28/11/2022, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against GAVANOVA, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.b) of the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP by postal notification, was delivered to GAVANOVA on 16/12/2022.

SIXTH: On 21/12/2022, GAVANOVA submitted a document, in due time and form, to this Agency in which it stated the following:

[...]

FIRST.- AUTHORIZATION FOR THE USE OF PERSONAL DATA.

The complainant had authorized this entity to process their data, a processing that included the possible transfer to other companies, especially to the cleaning company.

[...]

In relation to the present sanctioning procedure, we must inform you of the File of this Control Authority with reference number (...), against the owner of the property, a procedure that as of the date of this document of allegations has been archived, and where this same Authority states in the facts that the complainants agreed with the landlord on a cleaning of the apartment that would be deducted from the deposit.

SECOND.- CIRCUMSTANCES OF MITIGATION NOT APPLIED.

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3/17

[...]

a) Any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects; (...)

a) The degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; (...)

b) The benefits obtained as a result of the commission of the infringement. (...)

c) The impact on the rights of minors. (...)

FOURTH.- PROPORTIONALITY OF THE SANCTION.

In light of all the modifications made regarding the processing of personal data of the data subjects carried out by this entity, the filing of these proceedings is requested.

However, this party understands that a proposal for a warning sanction would be more proportional to the specific case presented, (...)."

Along with the written submission, the following documentation is provided:

- Copy of the "Legal Notice" and "Privacy Policy" that appears on the website ***URL.1.

- Copy of the new "Informative Clause on the Processing of Personal Data" that is incorporated into the documentation used by GAVANOVA.

SEVENTH: On 31/01/2023, the instructing body of the procedure agreed to open a period for evidence, considering the complaint filed by the claimant and its documentation, as well as the allegations to the initiation agreement PS/00394/2022 submitted by GAVANOVA and the accompanying documentation.

Likewise, as documentary evidence, GAVANOVA was required to provide a copy of the new contract that it requires owners, tenants, and third parties to sign to prevent the table with basic information from becoming obsolete.

On 13/02/2023, this Agency received a response from GAVANOVA providing the documents with the new information clause regarding data protection. Specifically, the models of the lease contract and contract termination.

EIGHTH: On 28/06/2023, the instructing body prepared a proposal for resolution in which it was proposed to sanction GAVANOVA with a fine of €2,000.00 for the infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

Also, in accordance with Article 58.2.d) of the GDPR, it was proposed that, within ten working days from the date on which the resolution in which this is agreed is notified to it, GAVANOVA must prove that it has completed the Privacy Policy that appears on its website ***URL.1.

The proposal for resolution was notified to GAVANOVA electronically on 28/06/2023, as recorded in the acknowledgment of receipt in the file.

After the period granted for the submission of allegations, this Agency has not received any allegations

from GAVANOVA.

PROVEN FACTS

FIRST: On 29/07/2020, the claimant and GAVANOVA signed a property reservation document, located at ***ADDRESS.1. The informative clause on data protection states the following (the translation is by this Agency):

“We inform you that in compliance with L.O. 15/1999, of December 13, on the Protection of Personal Data, the data you provide us by fulfilling this contract will become part of the file of GAVANOVA DE INMOBLES, S.L., Carrer Plaça Esglésias 3, Local 7-8, 08850 Gavà (Barcelona), for the management and sale of real estate. We also inform you that you can exercise your rights of access, rectification, cancellation, and opposition by sending a certified letter to the aforementioned address.”

SECOND: On 31/01/2022, the claimant and GAVANOVA signed the termination of the lease contract, signed on 04/09/2020. The content of the informative clause on data protection is identical to that stated above.

THIRD: On 27/07/2022, this Agency accessed the website ***URL.1, proving that the “Privacy Policy” section leads to a blank page.

FOURTH: On 18/11/2022, this Agency accessed the website ***URL.1 again, proving the incorporation of a Privacy Policy whose last update dates from 29/09/2022. Its content states the following:

“Data of the website owner.

Company name: GAVANOVA INMOBLES, S.L. NIF: B64935497. Domain: ***URL.1.

Postal Address: CARRER PLAÇA ESGLÈSIAS 3, LOCAL 7-8, 08850 GAVÀ (BARCELONA). Email address: ***EMAIL.1. Phones: XXXXXXXX and XXXXXXXX. Registration: volume 40736, page 186, sheet B373263, Registration 4.

Protection of personal data.

In accordance with the current and applicable regulations on the protection of personal data, we inform you that your data will be incorporated into the processing system owned by GAVANOVA INMOBLES SL with NIF B64935497 and registered office located at PLAÇA IGLESIA 3 LOC 7, 08850, GAVA (BARCELONA).

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5/17

continuation, we indicate the most notable aspects of the treatments carried out. At the same time, we inform you that you can contact the Data Protection Officer by writing to the email address ***EMAIL.2 or by calling ***TELÉFONO.1.

Rights of the data subjects.

GAVANOVA INMOBLES SL informs Users that they may exercise their rights of access, rectification, limitation, deletion, portability, and opposition to the processing of their personal data before the Data Controller, as well as the withdrawal of the consent given.

Right of Access: It is the user's right to obtain confirmation as to whether their data is being processed and, if so, the specific personal data being processed and the legal information of the processing (purposes, legal basis, retention periods, transfers, source of the data, etc.).

Right of Rectification: It is the right of the affected party to have inaccurate or incomplete data modified. In relation to the website, it can only be satisfied concerning information that is under the control of the website, for example, deleting comments published on the page itself, images, or web content that contains personal data of the user.

Right to Limit Processing: It is the right to limit the purposes of the processing originally provided by the data controller in certain cases.

Right of Deletion: It is the right to delete the user's personal data, except as provided for in the GDPR itself (freedom of expression and information, obligations of retention, formulation, exercise, or defense of claims, etc.).

Right to Portability: The right to receive the personal data that the user has provided in a structured, commonly used, and machine-readable format, and to transmit it to another controller when the processing is based on consent or the execution of a contract and is carried out by automated means.

Right of Opposition: It is the user's right not to have their personal data processed or to cease the processing of the same by the website when the processing is based on legitimate interest or public interest or when it concerns direct marketing treatments.

Right not to be subject to automated decisions, including profiling: When the processing is not necessary for the conclusion or execution of a contract, nor is it authorized by the law of the European Union or the Member States, nor is it based on consent, the user has the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning them or significantly affects them in a similar manner.

Right to withdraw consent: For any processing based on their consent, the user has the right to withdraw it at any time and free of charge.

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6/17

To exercise any of the rights regarding data protection described above, you must follow the following instructions:

Submit a written request to the address PLAÇA IGLESIA 3 LOC 7, 08850, GAVA (BARCELONA) (to the attention of GAVANOVA INMOBLES SL) or via email to the electronic address ***EMAIL.3.

The written request sent by the holder of the personal data requesting the exercise of rights must take into account the following:

You must be reliably identified, and if there are doubts about the identity of the requester, they will be asked to rectify the request (e.g., by requesting more information, such as the ID number, the ID document, the email provided, etc.)

The request can be made by a representative, whether legal or voluntary, when they are duly identified and authorized by the data subject (through an express authorization from the data subject to exercise the personal rights regulated in the data protection legislation).

Request specifying the rights intended to be exercised. If it does not refer to a specific processing, a response will be provided regarding all processing that affects their personal data. If information is requested about a specific processing, only that information will be provided. If requested by phone, they will be advised to do so in writing and will be informed of how to do it and the address to which it must be sent. Information will never be provided by phone.

Postal or electronic address for notification purposes.

Supporting documents for the request, if necessary.

The interested party must use any means that allows them to prove the sending and receipt of the request.

Finally, we inform you that you have the right to file a complaint with the Spanish Data Protection Agency if you become aware of or believe that an event may constitute a breach of the applicable data protection regulations.

GAVANOVA INMOBLES SL commits to adopting the necessary technical and organizational measures, in accordance with the level of risks associated with the treatments carried out by them and indicated in the terms and conditions of use, in such a way as to guarantee their integrity, confidentiality, and availability.

Last updated: September 29, 2022.

FIFTH: On 12/21/2022, GAVANOVA provides the following documentation:

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Copy of the "Legal Notice" and "Privacy Policy" that appear on the website ***URL.1. The content of the latter is identical to that indicated in the previous section.

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Copy of the document titled "Information on Personal Data Protection" which is incorporated into contracts with owners, tenants, and third-party companies; which does not contain a date or signature. The content is as follows:

"Information on personal data protection.

In accordance with the current and applicable regulations on personal data protection, we inform you that your data will be incorporated into the processing system owned by GAVANOVA INMOBLES SL with NIF B64935497 and registered office located at PLAÇA IGLESIA 3 LOC 7, 08850, GAVA (BARCELONA), and the following treatments are carried out:

Purpose: Management of the services derived from the leases or sale of real estate.

Retention period: As long as necessary for the mentioned purpose and, in any case, until the completion of legal obligations and the prescription of possible actions derived from the processing.

Legitimate basis: The execution of the contract.

Transfers: your data will be communicated, if necessary, to Banks and Savings Banks as well as to the public bodies or administrations with competence in the matter in order to comply with the legal obligations established in the applicable regulations. Your data may also be communicated, if necessary, to the companies that provide us with services to fulfill the established purposes.

Purpose: Administrative management, billing, and accounting, and management and processing of the obligations and duties arising from compliance with the regulations to which the entity is subject.

Retention period: As long as necessary for the mentioned purpose and, in any case, until the completion of legal obligations and the prescription of possible actions derived from the processing.

Legitimate basis: Compliance with legal obligations.

Transfers: your data will be communicated if necessary to the Tax Agency, Banks, Savings Banks, and Public Bodies and/or administrations with competence in the matter in order to comply with the legal obligations established in the applicable regulations.

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In no treatment previously indicated are there any international transfers of personal data or automated decisions, including profiling.

We also inform you that you can contact the Data Protection Officer by writing to the email address

***EMAIL.2 or by phone at ***TELÉFONO.1. In accordance with the rights granted to you by the current and applicable data protection regulations, you may exercise your rights of access, rectification, limitation of processing, deletion ("right to be forgotten"), portability, and opposition to the processing of your personal data, as well as the revocation of the consent given for their processing, by directing your request to the postal address indicated above or to the email address ***EMAIL.1.

You may contact the competent Control Authority, in this case, the Spanish Data Protection Agency, to file any complaint you deem appropriate."

SIXTH: On 02/13/2023, GAVANOVA provides a copy of the documents titled "Lease Agreement" and "Contract Termination" with the annex "Information on Personal Data Protection" mentioned in the previous section.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each control authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data

Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

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9/17

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction." Therefore, in accordance with the previous definitions, the processing of personal data is evidenced whenever GAVANOVA collects personal data, not only through the signed contracts but also through the contact form available on its website ***URL.1.

III

Claims made

This Agency has no record that GAVANOVA has submitted a written statement of claims against the proposed resolution.

However, as already indicated in the proposed resolution, regarding the claims presented by GAVANOVA against the agreement to open the current sanctioning procedure, the following considerations were made.

1. AUTHORIZATION FOR THE USE OF PERSONAL DATA.

GAVANOVA claims that the complaining party authorized the transfer of their personal data, particularly to the cleaning company.

In this regard, this Agency wishes to remind that, as indicated in the initiation agreement, the exchange of the complaining party's personal data between GAVANOVA and the cleaning company has not been proven even circumstantially.

2. APPLICATION OF MITIGATING CIRCUMSTANCES NOT APPLIED.

GAVANOVA argues that the mitigating circumstance related to the adoption of measures to alleviate the damages suffered by the affected parties should be applied, as the information provided to the complaining party was merely outdated, but this does not negate that they were informed. Additionally, it incorporated a new data protection information clause into its contracts and proceeded to modify the Privacy Policy and Legal Notice on the website ***URL.1.

In the same vein, GAVANOVA claims the mitigating circumstance related to the degree of cooperation with the supervisory authority, as it has attended to this procedure and hired a specialized consulting firm to advise it on compliance with the regulations.

In this regard, this Agency wishes to point out that the measures adopted by GAVANOVA to comply with the current regulations were already taken into account when determining the amount of the fine to be imposed, in accordance with the provisions of Article 83.2 of the GDPR. In any case, GAVANOVA is reminded that these are measures typical of a data controller acting based on the principle of proactive responsibility, in accordance with Article 5.2 of the GDPR.

Regarding the measures adopted, it should be noted that the Privacy Policy incorporated into the

website (**URL.1) lacks, among others, the following mandatory sections: purpose, legitimacy, or retention period of personal data.

Furthermore, this Agency wishes to remind that the adoption of measures does not remedy the infringing conduct of Article 13 of the GDPR. It is evident that, before the sanctioning procedure was initiated, GAVANOVA did not fulfill its obligation to properly inform its clients.

Additionally, GAVANOVA claims the possibility of applying as mitigating factors the lack of benefits derived from the commission of the infringement, as well as the non-affectation of minors' rights.

In this regard, this Agency wishes to point out that the Judgment of the National Court, dated 05/05/2021, rec. 1437/2020, indicates that: "On the other hand, it should be appreciated as a mitigating factor the non-commission of a previous infringement. Well, Article 83.2 of the GDPR establishes that the following circumstance should be taken into account for the imposition of the administrative fine, among others, 'e) any previous infringement committed by the controller or the processor.' It is an aggravating circumstance; the fact that the budget for its application does not exist means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor"; applied to the case under review, the lack of the budget for its application regarding Article 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement or that do not affect minors' rights, does not allow its application as mitigating factors. For all the above reasons, this claim is dismissed.

3. PROPORTIONALITY OF THE SANCTION.

GAVANOVA emphasizes the need to take into account the adoption of measures in order to comply with the current regulations, the presence of the aforementioned mitigating factors, and the delicate economic situation of the entity.

In this regard, this Agency maintains its previous position and, consequently, dismisses the claim.

IV

Transparency in the processing of personal data

The processing must be governed by the principles outlined in Article 5 of the GDPR, which states:

"Personal data shall be:

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11/17

a) Treated lawfully, fairly, and transparently in relation to the data subject ("lawfulness, fairness, and transparency");
(...)"

A manifestation of the principle of transparency is the obligation incumbent upon the data controllers to inform, in accordance with Article 13 of the GDPR, the data subject when personal data is obtained directly from the data subject:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information specified below at the time of obtaining the data:

a) The identity and contact details of the controller and, where applicable, of its representative;

a) the contact details of the data protection officer, where applicable;

b) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

c) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

d) the recipients or categories of recipients of the personal data, where applicable;

e) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- a) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;
- b) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- c) the right to lodge a complaint with a supervisory authority;
- d) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of failing to provide such data;
- e) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which the data were collected, it shall provide the data subject prior to that further processing with information about that other purpose and any pertinent additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this regard, Recital 60 of the GDPR states that "The principles of lawful and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any supplementary information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of failing to do so."

As previously established, GAVANOVA is the data controller of the personal data of its clients, which is why it is responsible for providing them with the aforementioned information in this regard. While it is true that it has adapted the information clause regarding data protection contained in the contracts it enters into with its clients and incorporated an annex with the remaining information; at the time this sanctioning procedure commenced, it only informed them of the matters indicated in the first point of the "Proven Facts" section.

Regarding the Privacy Policy of its website (***URL.1), it is evident that it does not inform users about all the aspects listed in Article 13 of the GDPR. As this Agency has already indicated, the purpose and legal basis for the processing or the retention period of the personal data collected through its forms, among other issues, are not mentioned anywhere.

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13/17

Therefore, in accordance with the evidence available at this time of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to GAVANOVA, for violation of Article 13 of the GDPR.

V

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the

infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 74 "Minor infringements" of the LOPDGDD indicates:

"1. The remaining infringements of a merely formal nature referred to in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

a) Non-compliance with the principle of transparency of information or the right to information of the affected party by failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679. (...)"

VI

Corrective powers for the infringement of Article 13 of the GDPR

The corrective powers available to the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

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28001 – Madrid

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14/17

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, taking into account the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

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15/17

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The balance of the circumstances considered allows for the imposition of a fine of €2,000.00 (two thousand euros) for the infringement of Article 13 of the GDPR.

VII

Corrective Measure

In accordance with the provisions of Article 58.2 d) of the GDPR, each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Under the provisions of the aforementioned article, GAVANOVA, as the data controller, is ordered to, within ten working days from the date this resolution is notified to it, provide evidence of having completed the information contained in the Privacy Policy on its website, ***URL.1.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further sanctioning administrative proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on GAVANOVA DE INMOBILES, S.L., with NIF B64935497, for an infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR, a fine of €2,000.00 (two thousand euros).

SECOND: TO ORDER GAVANOVA DE INMOBLES, S.L., with NIF B64935497, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the notification of this resolution, provide evidence of having completed the information contained in the Privacy Policy on its website, ***URL.1.
THIRD: TO NOTIFY this resolution to GAVANOVA DE INMOBLES, S.L.

FOURTH: To warn the sanctioned party that it must pay the imposed fine once this resolution is executive, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly
C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/17

Contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the additional provision four of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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